

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPA065775: LAURA M BARON, et al. vs MARIA CRISTINA RODRIGUEZ, et al.
08/13/2026 in Department 43
Demurrer**

The morning calendar in courtroom 43 will normally begin at 8:45. Please arrive for your hearing no later than 8:30 a.m. The door will be opened before the calendar is called.

The Court allows remote appearances by Zoom. Refer to the Courtroom 43 webpage for more information about remote appearances. For Zoom appearances, all counsel appearing by Zoom must register no later than 3:00 p.m. the court day before the hearing. If appearing by Zoom, log into the hearing no later than 8:30 a.m. The Court will transfer you to the meeting room when the calendar begins. Additional instructions can be found on the Court website. When you log in to Zoom, be sure that your name and the case name are used as your Zoom name.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling you can fax notice to Judge Coats's secretary, Ms. Brantner at 805-477-8790, stating that you submit on the tentative. Or you may email Courtroom43@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending a fax or email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Demurrer of Defendant Anabel Pamatz to the Complaint

Tentative Ruling: The Demurrer of Defendant Anabel Pamatz to the Complaint is OVERRULED.

Defendant contends that Plaintiff fails to plead a cause of action for wrongful death against the owner of the vehicle, Defendant Anabel Pamatz, because the complaint is not plead with sufficient specificity and only pleads a "legal conclusion" that Defendant "knew, or in the exercise of reasonable care should have known, that Mr. Rodriguez was incompetent and/or unfit to operate said motor vehicle," and that the vehicle "was used by Mr. Rodriguez with the express or implied consent of said defendant(s)." Defendant argues that the complaint should allege a factual basis for these allegations , such as:

- Whether Rodriguez had a valid driver's license or whether his license had been suspended or revoked;
- Whether Rodriguez had a history of traffic violations, accidents, or reckless driving;

- Whether Rodriguez suffered from any physical or mental condition that impaired his ability to drive safely;
- Whether Rodriguez was under the influence of alcohol or drugs at the time of entrustment or had a history of substance abuse;
- What relationship existed between Pamatz and Rodriguez;
- When, where, or under what circumstances Pamatz entrusted the vehicle to Rodriguez;

Plaintiff contends that it is sufficient for the complaint to allege that Defendant was the owner of the vehicle and that Defendant the vehicle was used by Rodriguez with Defendant's consent.

In California, a plaintiff must plead ultimate facts rather than evidentiary proof or abstract legal conclusions. (*Perkins v. Superior Court* (1981) 117 Cal. App. 3d 1. Also, *Rannard v. Lockheed Aircraft Corp.* (1945) 26 Cal. 2d 149.) Pleading "express or implied consent" tracks the language of the of California Vehicle Code § 17150 which states, "Every owner of a motor vehicle is liable and responsible for death or injury to person or property resulting from a negligent or wrongful act or omission in the operation of the motor vehicle, in the business of the owner or otherwise, by any person using or operating the same with the permission, express or implied, of the owner."

As determined by the Second District Court of Appeal in *Van Meter v. Reed* (1962) 207 Cal. App. 2d 866.

"The question next to be considered is whether the plaintiff sufficiently pleaded a cause of action against the owner of the motor vehicle in harmony with the reasoning of the Baugh case. 'Negligence may be alleged in general terms, which means that it is sufficient to allege that an act was negligently done without stating the particular omission which rendered it negligent.' (*Brooks v. E. J. Willig Truck Transp. Co.*, 40 Cal.2d 669, at 680 [255 P.2d 802].) Consequently, if the allegations hereinabove noted which are based upon section 3601 of the Labor Code are disregarded, the complaint is sufficient to state a cause of action for negligence against the appellant Reed under the provisions of section 17150 of the Vehicle Code."

Van Meter v. Reed (1962) 207 Cal. App. 2d 866, 869.

Because a demurrer tests only the legal sufficiency of the face of the complaint and treats all pleaded facts as true, a demurrer cannot be used to demand detailed factual pleading of how that consent was obtained or communicated. Unlike claims such as fraud, where a heightened pleading standard exists, in a cause of action for negligence, such as for wrongful death, it is sufficient to plead ultimate facts such as the existence of consent. (See *Committee on Children's Television, Inc. v. General Foods Corp.* (1983) 35 Cal. 3d 197, 216-217.)

For the foregoing reasons the demurrer is OVERRULED.

Defendant shall file an answer to the complaint on or before August 29, 2026.

Plaintiff is ordered to serve notice of the Court's ruling.